

European Patent Office
80298
Munich
Germany

16 July 2021

Dear European Patent Office

Re. European patent application no. 18755728.5
Nodthera Limited
Our ref: NODT-003/N01EP 330150-2050

We refer to the examination report dated 09 March 2021, and to the above-identified application.

We lodge herewith an amended set of claims to be substituted for the claims as presently on file. For the convenience of the Examiner, a further copy of the amended claims showing the amendments in track-changes format is also enclosed.

The applicant respectfully requests that any amendment of the description be deferred until such time as an allowable claim set has been agreed upon.

Amendments

Claim 1 has been amended so as to recite that **R₃** is H, methyl, or ethyl, wherein the methyl or ethyl is optionally substituted with one or more **R₇** *[emphasis added]*. Basis for this amendment can be found at, for example, original claims 27-29 and original paragraphs [0171], [0175], [0176], [0178] and [0241]. Basis for amended claim 1 can thus be found at original claims 1, 17-19, 23, 24 and 26-30, and paragraphs [0171], [0175], [0176], [0178] and [0241].

In light of the above amendment, claim 7 has been amended so as to recite that **R₃** is methyl, or ethyl, wherein the methyl or ethyl is optionally substituted with one or more **R₇** *[emphasis added]*. Basis for amended claim 7 can be found at original claims 28-29 and at original paragraphs [0175], [0176], [0178] and [0241].

Novelty

It is submitted that, by making the above amendments to claim 1, the objection in item 2 of the examination report has been overcome. It is therefore submitted that the novelty of the claims should now be acknowledged.

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Inventive step

In item 3 of the examination report, the Examiner stated that the subject-matter of the claims, insofar as it is novel, appears to fulfil the requirements of Article 56 EPC. It is therefore submitted that, in light of the above amendment made to claim 1, the amended claims as filed herewith should be considered inventive.

Purely as a precaution, should the Examiner be minded to refuse this application, oral proceedings are requested under Article 116 EPC before any such decision is taken.

Yours faithfully



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For and on behalf of Cooley (UK) LLP
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